TERMS AND CONDITIONS

Last Updated: March 08, 2026

AGREEMENT TO LEGAL TERMS

These Terms and Conditions (“Legal Terms”) constitute a legally binding agreement between:

Popclozet Fashion Pvt Ltd
(“Company”, “we”, “us”, or “our”)
Registered Office:
SANE Colony, Haveli Pimpri
Chikhali, Pune, Maharashtra 411062
India

And:

You (“User”, “you”, or “your”).

By accessing, browsing, registering with, or using **popclozet.in** (the “Site”) and related services (collectively, the “Services”), you confirm that:

- You have read these Legal Terms
- You understand them
- You agree to be legally bound by them

IF YOU DO NOT AGREE, YOU MUST IMMEDIATELY DISCONTINUE USE OF THE SERVICES.

1. NATURE OF SERVICES

Popclozet is a Mumbai-based hyperlocal fashion rental utility providing:

- On-demand 60-minute delivery
- Curated sneakers, jackets, and low-fit-risk apparel
- No-deposit rental model
- Rent-to-Buy conversion mechanism
- RFID hygiene tracking and logistics audit systems

All products remain the exclusive property of Popclozet unless legally sold.

The rental transaction constitutes a **temporary bailment arrangement**, not a transfer of ownership.

2. STORED PAYMENT AUTHORIZATION & TOKENIZATION CONSENT

2.1 Mandatory Payment Authorization

By placing an order, you:

- Authorize Popclozet to securely store, tokenize, and retain your payment credentials via Razorpay or equivalent RBI-compliant gateway.
- Grant irrevocable consent for future automated charges without requiring fresh OTP authentication, where legally permissible.

2.2 Auto-Debit Rights

You expressly authorize us to:

- Charge damage penalties
- Charge late return penalties
- Execute Deemed Sale charges
- Recover unpaid dues

From your stored payment method without additional consent at the time of debit.

Failure of payment authorization does not waive your liability.

3. RENTAL, LIABILITY & DEEMED SALE ENFORCEMENT

3.1 Rental Ownership

All rented items remain the exclusive property of Popclozet at all times unless purchased under Rent-to-Buy.

You acquire only temporary possessory rights.

3.2 Three-Tier Liability Structure

Tier 1 – Normal Wear & Tear

Covered under rental fee:

- Minor removable stains
- Surface dust
- Standard usage marks

Industrial cleaning is conducted at 120–150°C as per SOP.

Tier 2 – Major Damage

Includes:

- Permanent stains (ink, bleach, oil)
- Rips, tears, structural damage
- Hardware or zipper failure
- Sole damage on footwear

Penalty:
Repair Cost + 20% Administrative Fee

Optional damage protection may be purchased at checkout.

3.3 TOTAL LOSS / NON-RETURN — “DEEMED SALE” CLAUSE

If the rented item is not returned within **24 hours after the agreed return slot**, the transaction shall automatically be treated as a completed sale (“Deemed Sale”).

Upon Deemed Sale:

1. You are immediately liable for 110% of the Retail MRP of the item.
2. Popclozet is authorized to immediately charge your stored payment method.
3. No additional notice, reminder, or demand is required.
4. Continued retention constitutes unlawful possession.

This clause provides Popclozet with a clear contractual and legal basis to execute full asset recovery charges.

4. CRIMINAL LIABILITY WARNING

Unauthorized retention, concealment, resale, or refusal to return rented items may constitute criminal offenses under:

- Section 403 of the Indian Penal Code (Criminal Misappropriation of Property)
- Section 405 of the Indian Penal Code (Criminal Breach of Trust)

Popclozet reserves the right to:

- Initiate FIR proceedings
- File criminal complaints
- Pursue civil recovery
- Engage recovery agencies

The User acknowledges that rental misuse is not merely a civil debt but may amount to criminal liability.

5. STRICT HANDS-OFF CLEANING POLICY

Users are strictly prohibited from:

- Washing
- Dry cleaning
- Steam treating
- Ironing
- Applying detergents
- Applying stain removers

Or otherwise attempting to clean rented items.

Domestic washing methods can permanently damage fabrics and RFID tags.

Violation automatically upgrades liability to Tier 2 (Major Damage) regardless of outcome.

6. USER REPRESENTATIONS

You represent and warrant that:

- You are at least 18 years old (or have parental consent if 13–17)

- You provide accurate identity and payment information
- You will not attempt fraud or payment disputes without legal basis
- You will not resell rented items

Providing false information may result in permanent blacklisting.

7. PAYMENT DISPUTE & CHARGEBACK POLICY

Initiating fraudulent chargebacks or payment disputes after valid delivery and usage constitutes:

- Breach of contract
- Financial fraud

We reserve the right to:

- Submit delivery logs, RFID records, and usage data to payment gateways
- Initiate legal proceedings
- Recover legal costs

8. LIMITATION OF LIABILITY

To the maximum extent permitted under Indian law:

Popclozet shall not be liable for:

- Indirect damages
- Consequential damages
- Loss of profits
- Loss of opportunity
- Emotional distress

Total liability, if any, shall not exceed the rental amount paid for the specific transaction.

9. INDEMNIFICATION

You agree to indemnify and hold harmless Popclozet, its directors, employees, and agents against:

- Claims arising from your misuse

- Criminal investigations triggered by your actions
- Third-party IP violations
- Payment fraud attempts

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10. GOVERNING LAW & JURISDICTION

These Legal Terms shall be governed by the laws of India.

Exclusive jurisdiction for all disputes shall lie with the courts of Mumbai, Maharashtra.

Users irrevocably consent to Mumbai jurisdiction.

11. BINDING ARBITRATION CLAUSE

11.1 Mandatory Arbitration

Any dispute, claim, or controversy arising out of or relating to these Terms shall be resolved through binding arbitration in accordance with:

The Arbitration and Conciliation Act, 1996 (India).

11.2 Arbitration Seat & Venue

- Seat of arbitration: Mumbai, Maharashtra
- Language: English
- Sole arbitrator appointed by Popclozet

11.3 Waiver of Class Action

Users waive the right to:

- Class action lawsuits
- Collective proceedings

Arbitration shall be conducted on an individual basis only.

11.4 Injunctive Relief Exception

Popclozet retains the right to seek immediate injunctive relief in Mumbai courts for:

- Asset recovery
- IP infringement
- Criminal complaints

12. TERMINATION RIGHTS

We may suspend or permanently terminate accounts for:

- Fraud suspicion
- Repeated damage
- Non-payment
- Chargeback abuse

No refunds shall be issued in cases of violation.

13. MISCELLANEOUS

If any provision is found unenforceable, the remaining provisions remain valid.

Failure to enforce a right does not waive it.

Electronic contracts and signatures are legally binding.

14. CONTACT INFORMATION

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